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INDIA NON JUDICIAL

Government of National Capital Territory of Delhi

e-Stamp

Certificate No.	:	IN-DL80408903769575W
Certificate Issued Date	:	03-Nov-2024 10:57 AM
Account Reference	:	IMPACC (IV)/ dl709203/ DELHI/ DL-DLH
Unique Doc. Reference	:	SUBIN-DLDL70920309078435612267W
Purchased by	:	CLIX CAPITAL SERVICES PRIVATE LIMITED
Description of Document	:	Article 5 General Agreement
Property Description	:	Not Applicable
Consideration Price (Rs.)	:	0 (Zero)
First Party	:	CLIX CAPITAL SERVICES PRIVATE LIMITED
Second Party	:	Not Applicable
Stamp Duty Paid By	:	CLIX CAPITAL SERVICES PRIVATE LIMITED
Stamp Duty Amount(Rs.)	:	200 (Two Hundred only)

Please write or type below this line

"This Stamp Paper is An Integral Part
of Loan Agreement Betweeen
Clix Capital Services Pvt. Ltd. and
Qaig private limited

CLIX CAPITAL SERVICES LIMITED

Statutory Alert:

1. The authenticity of this Stamp certificate should be verified at 'www.shcilestamp.com' or using e-Stamp Mobile App of Stock Holding. Any discrepancy in the details on this Certificate and as available on the website / Mobile App renders it invalid.
2. The onus of checking the legitimacy is on the users of the certificate.
3. In case of any discrepancy please inform the Competent Authority.

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BUSINESS LOAN – Key Fact Statement

Part 1 (Interest rate and fees/charges)

1	**Loan proposal/ account No.** DSA4BL32204124	**Type of Loan**	Unsecured - BL
2	**Sanctioned Loan amount (in Rupees)**	1523189	
3	**Disbursal schedule** (i) Disbursement in stages or 100% upfront. (ii) If it is stage wise, mention the clause of loan agreement having relevant details	100% Upfront	
4	**Loan term (year/months/days)**	24 MONTHS	
5	**Instalment details**		

Type of instalments	**Number of EPIs**	**EPI (₹)**	**Commencement of repayment, post sanction**
Equated Installments (Principal and Interest)	24	76782	2nd of every month

6	**Interest rate (%) and type (fixed or floating or hybrid)**	19% (Fixed)
7	**Additional Information in case of Floating rate of interest**	

Reference Benchmark	**Benchmark rate (%) (B)**	**Spread (%) (S)**	**Final rate (%) R = (B) + (S)**	**Reset periodicity (Months)**		**Impact of change in the reference benchmark (for 25 bps change in 'R', change in:)**	
				B	**S**	**EPI (₹)**	**No. of EPIs**
--	--	--	--	--	--	--	--

8	**Fee/ Charges**				
		Payable to the RE (A)		**Payable to a third party through RE (B)**	
		One-time/ Recurring	**Amount (in ₹) or Percentage (%) as applicable**	**One-time/Recurring**	**Amount (in ₹) or Percentage (%) as applicable**
(i)	**Processing fees**	One-time	37745		
(ii)	**Insurance charges**			One-time	43992
(iii)	**Broken Period Interest(BPI)+**	One-time	2372		
(iv)	**Any other (please specify)- Credit Admin Charges (CAC)**	One-time	5393		

+ The Broken Period Interest (BPI) will be applied on the Facility Amount and will be deducted upfront from the disbursement proceeds basis on the actual date of disbursement. BPI may differ basis the actual disbursement date.

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For QAIG PRIVATE LIMITED X1 [signature] Director	X2 [signature]

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9	**Annual Percentage Rate (APR) (%)**	25.37%
10	**Details of Contingent Charges (in ₹ or %, as applicable)**	
(i)	Overdue Interest /Default Interest / Additional Interest	up to 3% pm on EMI overdue
(ii)	Bounce Charges (For each default in repayment of instalment)	Rs.1,000/-
(iii)	Foreclosure charges (Prepayment Fee)	<12 Months -6% of future principal outstanding 12 Months to less than 24 Months – 5% of future principal outstanding 24 Months to less than 48Months – 4% of future principal outstanding

Schedule of Charges are subject to change at the sole discretion of the Lender. Refer to the Clix's website at https://www.clix.capital/our-policies/ for any change in Schedule of Charges, from time to time.

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER
For QAIG PRIVATE LIMITED X1	X2

Director

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Part 2 (Other qualitative information)

1	**Clause of Loan agreement relating to engagement of recovery agents**	The Clause titled as "Miscellaneous" having sub-clause as "Appointment of Agents"
2	**Clause of Loan agreement which details grievance redressal mechanism**	The Clause titled as "Grievance Redressal"
3	**Phone number and email id of the nodal grievance redressal officer**	Ms. Shagun Malhotra Jhanji, E-mail : nodalofficer@clix.capital, Mobile - 9319192134
4	**Whether the loan is, or in future maybe, subject to transfer to other REs or securitization (Yes/ No)**	Yes
5	**In case of lending under collaborative lending arrangements (e.g., co-lending/ outsourcing), following additional details may be furnished:**	
Name of the originating RE, along with its funding proportion	**Name of the partner RE along with its proportion of funding**	**Blended rate of interest**
--	--	--
6	**In case of digital loans, following specific disclosures may be furnished:**	
(i) Cooling off/look-up period, in terms of RE's board approved policy, during which borrower shall not be charged any penalty on prepayment of loan		--
(ii) Details of LSP acting as recovery agent and authorized to approach the borrower		--

x1 Sang mg

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER
For QAIG PRIVATE LIMITED x1 Sang mg Director	x2 Bryng

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Computation of APR

Sr. No.	Parameter	Details
1	Sanctioned Loan amount (in Rupees) (Sl no. 2 of the KFS template – Part 1)	1523189
2	Loan Term (in years/ months/ days) (Sl No.4 of the KFS template – Part 1)	24 MONTHS
a)	No. of instalments for payment of principal, in case of nonequated periodic loans	NA
b)	Type of EPI Amount of each EPI (in Rupees) and nos. of EPIs (e.g., no. of EMIs in case of monthly instalments) (Sl No. 5 of the KFS template – Part 1)	Monthly INR 76782 24Months
c)	No. of instalments for payment of capitalised interest, if any	NA
d)	Commencement of repayments, post sanction (Sl No. 5 of the KFS template – Part 1)	2nd of every month
3	Interest rate type (fixed or floating or hybrid) (Sl No. 6 of the KFS template – Part 1)	Fixed
4	Rate of Interest (Sl No. 6 of the KFS template – Part 1)	19% (Fixed)
5	Total Interest Amount to be charged during the entire tenor of the loan as per the rate prevailing on sanction date (in Rupees) [1]	321947
6	Fee/ Charges payable (in Rupees)	89502
A	Payable to the RE (Sl No.8A of the KFS template-Part 1)	45510
B	Payable to third-party routed through RE (Sl No.8B of the KFS template – Part 1)	43992
7	Net disbursed amount (1-6) (in Rupees) [2]	1433687
8	Total amount to be paid by the borrower (sum of 1 and 5) (in Rupees)	1845136
9	Annual Percentage rate- Effective annualized interest rate (in percentage) (Sl No.9 of the KFS template-Part 1)	25.37%
10	Schedule of disbursement as per terms and conditions	100% upfront
11	Due date of payment of instalment and interest	2nd of every month

[1] Broken period Interest (BPI) is included in the calculation but the final BPI will be communicated in the welcome letter post-disbursement as BPI may differ basis the actual disbursement date. The Broken Period Interest is the amount payable by the Borrower to the Lender for the Broken Period Days, where broken period days is the number of days between disbursal date and 1st instalment date that are less than or equal to 29 days.

[2] The Broken Period Interest will be applied on the Facility Amount and will be deducted upfront from the disbursement proceeds.

Note: Broken period interest is excluded from the above calculation. The amount of broken period interest will be communicated through the welcome letter post disbursement.

X1 Sanjay

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER
For QAIG PRIVATE LIMITED X1 Sanjay Director	X2 Brijraj

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Repayment Schedule under Equated Periodic Instalment*

Instalment No.	Principal Outstanding	Principal (in Rupees)	Interest (in Rupees)	Instalment (in Rupees)
1	1523189	52,665	24117	76782
2	1,470,524	53,499	23283	76782
3	1,417,026	54,346	22436	76782
4	1,362,680	55,206	21576	76782
5	1,307,474	56,080	20702	76782
6	1,251,394	56,968	19814	76782
7	1,194,426	57,870	18912	76782
8	1,136,556	58,786	17995	76782
9	1,077,769	59,717	17065	76782
10	1,018,052	60,663	16119	76782
11	957,389	61,623	15159	76782
12	895,766	62,599	14183	76782
13	833,167	63,590	13192	76782
14	769,577	64,597	12185	76782
15	704,980	65,620	11162	76782
16	639,361	66,659	10123	76782
17	572,702	67,714	9068	76782
18	504,988	68,786	7996	76782
19	436,202	69,875	6907	76782
20	366,327	70,982	5800	76782
21	295,345	72,106	4676	76782
22	223,239	73,247	3535	76782
23	149,992	74,407	2375	76782
24	75,585	75,585	1197	76782
			319575	

* Repayment schedule (RPS) is for illustrative purposes. There might be a difference in the actual repayment amount due to rounding off the instalment amount vis-à-vis the instalment amount mentioned in the key fact statement. Final RPS will be shared post-disbursement along with the Welcome letter.

X1 Gmg

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER
For QAIG PRIVATE LIMITED X1 Gmg	X2 Bsgm

Director

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BUSINESS LOAN – SANCTION CUM FACILITY AGREEMENT

This facility agreement is executed on such date as set out in the table below (which is identified as the Commercial Terms of the Facility). This Facility Agreement (the Commercial Terms and the Terms and Conditions of the Facility are together read as the "**Facility Agreement**") is executed between **Clix Capital Services Private Limited**, a company having its registered office at Plot No. 23, 5th Floor, Aggarwal Corporate Tower, Govind Lal Sikka Marg, Rajendra Place, New Delhi- 110008 (hereinafter referred to as the "**Lender**", which expression shall include its successors, Affiliates and assigns); and

The persons who are identified as 'borrower' and 'co-borrower' (if any) in the Commercial Terms, (hereinafter referred to as "**Borrower**", which expression shall include the co-borrowers, and include their successors, representatives, heirs and permitted assigns).

WHEREAS at the request of the Borrower, the Lender has agreed to advance the Facility (defined below) to the Borrower on terms and conditions as set out in this Facility Agreement which has been agreed to and duly accepted by the Borrower. The Parties therefore agree as follows:

COMMERCIAL TERMS OF THE FACILITY

#	Particular	Description
1.	Date of this Facility Agreement	30/12/2024
2.	Borrower	Name: QAIG Private limited Attn: 305 B, capital Park, 3rd floor, Jai Hind Enclave, Hitech city Road, Hyderabad Telangana-500081 Address:
3.	Co-borrower	Name: Sanjay P Chittoor Attn: Villa 83, meenakshi Bamboos, opp Ramkey Towers Gachibowli, K.V. Rangareddy, Telangana-500032 Address:
	Co- borrower	Name: Prasad Boya Attn: MIG 1/226, Phase 9, near malaysian township, KPHB colony, Hyderabad, Telangana-500072 Address:

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER	SIGNED FOR AND ON BEHALF OF LENDER
For QAIG PRIVATE LIMITED Director		CLIX CAPITAL SERVICES PRIVATE LIMITED

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4.	Facility (strike whichever is not applicable)	With insurance - INR 1523189 (Rupees FIFTEEN LAKH TWENTY THREE THOUSAND ONE HUNDRED AND EIGHTY NINE only) Without insurance - INR 1500000 (Rupees FIFTEEN LAKH only) *Insurance premium*** - INR 23189 (Rupees TWENTY THREE THOUSAND ONE HUNDRED AND EIGHTY NINE only)
5.	Purpose	General business purposes/ working capital
6.	Tenure (tick whichever is applicable)	24 [months/ years]
7.	Frequency of Repayment	Monthly
8.	Interest Rate (Fixed)	19 % (NINTEEN) per annum
9.	Instalment Due Date	2nd of every month
10.	**Default Rate**	**36 % (THIRTY SIX) per annum**
11.	Instalment(s)	INR 76782 (Rupees SEVENTY SIX THOUSAND SEVEN HUNDRED AND EIGHTY TWO only) payable as per the Repayment Schedule. The estimated aggregate Instalments for the tenure of the Facility shall be INR ____________ (Rupees ____________ only).
12.	Processing fees (non-refundable) 2.1% + GST	INR ____________ (Rupees ____________ only) *Note: The processing fee is a non-refundable fee and is payable independent of whether the Facility has been granted/ disbursed or not.*
13.	Credit Admin Charges (CAC) 0.3% + GST	INR ____________ (Rupees ____________ only)
14.	Dishonour Charges/ Cheque Bounce/ NACH return charge	**INR 1000 + Applicable Taxes, if any**
15.	Prepayment Charges	____ % (________________) of the amount prepaid. <12 months – 6% of future principal outstanding 12 months to less than 24 months – 5% of future principal outstanding 24 months to less than 48 months – 4% of future principal outstanding Prepayment is permissible only after expiry of 3 (three) months from the date of disbursal.

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER	SIGNED FOR AND ON BEHALF OF LENDER
For QAIG PRIVATE LIMITED X1 Director	X1 X2	CLIX CAPITAL SERVICES PRIVATE LIMITED

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16.	Schedule of Charges	Copy of which is provided to the Borrower and which may be accessed through Lender's website at https://www.clix.capital/our-policies/
17.	Broken period Interest	The Broken Period Interest is the amount payable by the Borrower to the Lender for Broken Period Days, where broken period days is number of days between disbursal date and 1st instalment date that are less than or equal to 29 days. The Broken Period Interest will be applied on Facility Amount and will be deducted upfront from the disbursement proceeds. In this case the tenure of the Facility increases by Broken Period Days. The amount of broken period interest will be communicated through the welcome letter post disbursement.
18.	Condition Precedent Documents	The Borrower shall submit the following documents, as stated below, in the form and substance satisfactory to the Lender: 1. Utilization Request/DRF as provided in Schedule ___; 2. End use Letter. 3. Insurance Utilization Request. 4. NACH The Borrower agrees that the list of documents is not exhaustive and undertakes to submit such additional documents requested by the Lender from time to time.
19.	Repayment Instruments	BANK => ICICI BANK Acno :- 720305000315
20.	Special Conditions	FI, PCU Hunter tobe cleared.

*** As per the request of the Borrower, for taking insurance from the insurance company as mentioned above which is expressed in the application form. The Borrower agrees that insurance is a third-party product and the Borrower shall be subject to insurance terms of the Insurance Company. Insurance is optional and the premium as agreed in the insurance documents shall be paid by the Borrower.*

Acknowledgment

I/ We hereby accept and confirm that I/ we have the received the Schedule of Charges applicable on the Facility from the Lender. I/ We hereby agree that Schedule of Charges are subject to change at the sole discretion of the Lender and agree to refer to the Lender's website at https://www.clix.capital/our-policies/ for any change in Schedule of Charges, from time to time.

[*Terms and Conditions of the Facility follow*]

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER	SIGNED FOR AND ON BEHALF OF LENDER
For QAIG PRIVATE LIMITED X1 Director	X2	CLIX CAPITAL SERVICES PRIVATE LIMITED

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TERMS AND CONDITION OF THE FACILITY

1. DEFINITIONS AND INTERPRETATION:

Capitalized terms used but not defined below shall have the meanings ascribed to them in the Commercial Terms. The following terms shall have the respective special meanings assigned to them:

Affiliate: means in relation to a Party means any entity, which controls, is controlled by, or is under the common control of such Party. The term "**control**" shall include the right to appoint majority of the directors or to control the management or policy decisions exercisable by a person or persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements or in any other manner.

Applicable Laws: means any statute, regulation, notification, circular, ordinance, requirement, direction, guideline, announcement or other binding action or requirement of an Authority.

Authorization: means any consent, registration, filing, agreement, notarization, certificate, license, approval, permit, authority or exemption from, by or with any Authority, whether given by express action or deemed given by failure to act within any specified time period and all corporate, creditors' and shareholders' approvals or consents.

Authority: means any government, trade agency, department, agency or instrumentality of any government thereof; departments, bodies, regulatory authorities, government authorities, any court or arbitral tribunal and the governing body of any securities exchange or any other statutory/ regulatory body.

Business Day: means a day on which the Lender is open for business in New Delhi.

Facility Documents: includes this Facility Agreement, the application form, all other agreements, instruments, undertakings, indentures, deeds, writings, other documents (whether financing, security or otherwise), executed or entered into, or to be executed or entered into, by any other person, in relation or pertaining, to the contemplated by or under, this Facility Agreement or any of the Facility Documents.

Indebtedness: means a debt obligation or liability of any nature or description whatsoever, at any time (whether actual or contingent), whether present or future, for or in respect of, monies borrowed, contracted or raised (whether or not for cash consideration) or liabilities contracted by whatever means (including under guarantees, assumption of financial obligations, indemnities, acceptance, debentures, credits, deposits, hire-purchase and leasing) with any other financial institution or any other person.

Instalment: means each instalment (consisting of interest and principal) payable to repay the Facility as per the Commercial Terms as per the Repayment Schedule;

"**Increased Costs**" means such increased costs incurred by the Lender on account of any of the following:

a. a reduction in the rate of return from the Facility or on the Lender's overall capital (including as a result of any reduction in the rate of return on capital brought about by more capital being required to be allocated by the Lender);

b. any additional or increased cost (including due to increased provisioning requirements) as may be required under, to comply with or as may be set out in RBI regulations or any other such regulations from time to time; or

c. a reduction of any amount due and payable under this Facility Agreement.

Material Adverse Change: Any circumstances, events, occurrence, fact, condition, change, development or effect, which is or may, in the opinion of the Lender, have or be expected to have a material and adverse effect upon the: Borrower's business, condition (financial or otherwise), results, operations or properties; legality, validity or enforceability of Facility Documents; Borrower's ability to observe its obligations under this Facility Agreement and/ or any Facility Documents; Lender's rights; or any domestic or international event, which in the opinion of the Lender could adversely affect the Facility.

Outstanding Amount: means the principal amount of the Facility, interest, default interest, fees, costs and expenses, indemnification amounts, enforcement costs and all other payment obligations under the Facility Documents.

Party: means individually the Lender and/ or the Borrower and the term "**Parties**" shall be construed accordingly.

Person or person: includes bodies corporate, individual, unincorporated associations, partnerships and any organisation or entity having legal capacity.

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For QAIG PRIVATE LIMITED X1 Director	X2	

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Repayment Schedule: means the repayment schedule issued by the Lender, as amended from time to time, basis which the Borrower is required to repay the Facility.

RBI: means the Reserve Bank of India.

Tax or Taxes: includes any and all present or future claims for tax, levy, impost, duty or other charges of a similar nature (including any penalty or interest payable in connection with any failure to pay or any delay in paying any of the same) however imposed, withheld, levied, or assessed by any governmental authority or any other taxing authority in connection with this Facility Agreement or the Indebtedness or the Facility Documents but shall not include tax on the income of any Party.

2. DISBURSAL OF THE FACILITY

2.1. The Lender shall make the Facility available to the Borrower, upon the terms and subject to the conditions hereof, and upon furnishing all documents as required by the Lender to the satisfaction of the Lender.

2.2. The Borrower hereby represents and undertakes that the Facility or part thereof shall be utilised by the Borrower only for its general business purposes or such purpose set out in the Commercial Terms and the Borrower shall not utilize the Facility or part thereof for any immoral, illegal and/or speculative purposes ("**Purpose**"). The Borrower shall, forthwith upon the request of the Lender, furnish to the Lender all such details and evidence as the Lender may require concerning the utilisation of the amount of Facility.

2.3. The Facility shall be for such Tenure as specified in the Commercial Terms. The Borrower hereby agrees to fulfil its obligations specified hereunder for the entire Tenure of the Facility.

3. INTEREST AND DEFAULT INTEREST

3.1. The Borrower shall be liable to pay interest, upfront processing fee, cancellation charges, default interest, and such other fees and charges on the Facility at the rates specified in the Commercial Terms. The Borrower confirms having perused and understood the Lender's method of calculating the interest on the Facility. The Lender may revise, modify or vary the Interest Rate (upwards or downwards), on the Facility due to any amendments made to the guidelines and/ or directives of the RBI, Lender's pricing policy from time to time and such revised, modified or varied rates of interest shall be final and binding on the Borrower. Such revisions in the Interest Rate shall be duly notified to the Borrower and/ or made available on the website of the Lender. The Borrower agrees that any notification on the website or by way of any other physical or electronic means shall deemed to be sufficient notice for the applicability of the revised Interest Rate. Thereafter, notwithstanding anything else contained in this Facility Agreement, the Interest Rate varied as aforesaid shall be applicable to the Facility from the effective date of the notification irrespective of the date when the Borrower received the communication. Any change in the Interest Rate and/ or charges shall be prospective in nature. The Interest Rate excludes any Tax on interest and any and other statutory dues which shall also be payable by the Borrower.

3.2. **Without prejudice to any other rights of the Lender, if the Borrower fails to pay any amount due and payable under the Facility Documents, including but not limited to, principal, interest, and/ or any other money howsoever payable, then it shall pay default interest on that sum from the time of default until the time of actual payment at the Default Rate specified in the Commercial Terms ("Default Interest") by way of liquidated damages. Additionally, upon occurrence of an Event of Default under the Facility Documents, the Borrower shall pay interest at the rate of Default Rate on the entire outstanding from the date of default. Borrower agrees that the Default Rate and Default Interest is a genuine pre-estimate of the loss or damage to Lender. The Default Interest shall be levied based on the number of days the amount/ default remains in default/ irregularity. Default Interest shall accrue daily on the basis of a year of 360 days from and including the first day.**

4. REPAYMENT AND PREPAYMENT

4.1. The Borrower shall repay the Facility with interest at the Interest Rate specified in the Commercial Terms by way of Instalments in accordance with the Repayment Schedule, as maybe amended from time to time. For any reason, if the amount finally disbursed by the Lender out of the Facility is less than the amount requested by Borrower, the Instalments for repayment of the Facility shall stand reduced which shall be communicated by the Lender but shall be payable on the same dates as specified in the Repayment Schedule.

4.2. Pre-payment charges, as stated in the Commercial Terms hereto, shall be charged on the repayments made ahead of the repayment terms.

4.3. If any payment falls due on a day, which is not a Business Day, then the immediately preceding Business Day shall be the payment day for the purpose of this Facility Agreement.

4.4. In the event the borrower commits a default in the payment of the Facility amounts due and payable hereunder, or if the Borrower commits any breach or default of any other condition of this Agreement, the Borrower shall be liable to pay default interest at the default rate set out in Commercial Schedule/ Sanction Letter on the overdue amount from the date of default until full and final settlement ("**Default Interest**").

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For QAIG PRIVATE LIMITED Director		

For example, if the Due Date is 2nd day of every month and the Borrower pays the Instalment amount on 30th of the month, the Lender shall levy Default Rate of Interest starting from 3rd up till 30th. In a second scenario, if the Borrower does not pay on the Due Date and the Instalment amount remain unpaid for a continuous period of 30 days, the Lender shall have the right to(a) levy Default Interest; (b) report the Borrower as an SMA-0. If the Borrower further continues to default in repayment from a period of 30 days up to 60 day, the Lender shall report the Borrower as SMA-1 and levy Default Interest. If the Borrower further continues to default in repayment from a period of 60 days up to 90 day, the Lender shall report the Borrower as SMA-2 and levy Default Interest. *If the Borrower continues to default in repayment for more than 90 days then the account shall be classified as NPA.* The Lender shall additionally have the right to call an Event of Default in accordance with the agreement, at any time upon an event of non-payment.
The borrower' account shall only be classified as 'Standard' asset from NPA if the entire arrears of interest and principal are paid by the borrower.

5. PAYMENT AND INCREASED COST

5.1. All payments made by the Borrower under the Facility Documents, shall be credited directly to the Lender's account in the for m and manner notified to the Borrower from time to time.

5.2. To the extent applicable, the Borrower shall pay (as per any revised Repayment Schedule) all such amounts incurred by the Lender due to any Increased Costs as a result of: (a) the introduction of or any change in (or in the interpretation, administration or app lication of) any law or regulation; (b) compliance with any law or regulation made before or after the date of this Facility Agree ment (including any law or regulation concerning capital adequacy, prudential norms, liquidity, reserve assets or tax); or (c) in the event of the Lender being called upon to pay any lending agency in terms of their respective financing agreements; or (d) on account of factors beyond the control of the Lender.

5.3. The Borrower acknowledges that the Lender shall have the right to demand and recover any Increased Costs from the Borrower that may arise pursuant to provisions of applicable law (including capital adequacy or prudential norms).

6. CANCELLATION

6.1. The Lender shall be entitled to cancel whole or any part of the Facility thereof by issuing a notice to the Borrower. The Borrower shall not be entitled to cancel the Facility except with the prior approval of the Lender. Any cancellation requested by the Borrower may be subject to cancellation or other charges payable by the Borrower, unless waived by the Lender. Upon cancellation of the Facility (wholly or partly) the Borrower shall promptly repay the Facility up to the amounts so availed/utilised.

7. REPRESENTATIONS, WARRANTIES AND COVENANTS

7.1. The Borrower hereby represents and warrants to the Lender that:

a. it is validly organized as per applicable laws in India and has obtained all necessary authorisations and licenses to carry out its business;

b. the Facility Documents have been validly executed and are legally binding as per the terms thereof. The entry into, delivery and performance by the Borrower of, and the transactions contemplated by the Facility Documents do not and will not conflict: (a) with any law; (b) with its constitutional documents; or (c) with any document which is binding upon the Borrower or on any of its assets;

c. no action, litigation or proceedings before any Authority is pending which might cause a Material Adverse Change;

d. it has not been declared insolvent or bankrupt and there is no order existing or threatened directing the winding-up, liquidation or other similar step of its affairs nor has any insolvency and/ or winding up proceedings been initiated against the Borrower in any court of law in India;

e. it is conducting its business in compliance with all Applicable Laws;

f. it shall inform the Lender of the occurrence or likely occurrence of any event which is likely to affect the capacity of th e Borrower to repay the Outstanding Amount hereunder and/ or its Indebtedness generally;

g. no event has occurred which constitutes (or which with the giving of notice, lapse of time, determination of materiality or the fulfilment of any other applicable condition or any combination of the foregoing, might constitute) a default under any document which is binding on either the Borrower or any of its assets to an extent or in a manner which might have a material adverse effect on the Borrower;

h. Neither the Borrower nor any of its directors/promoters/sponsors or guarantors, have been declared to be a wilful defaulter by either (a) RBI; (b) credit information companies/ bureaus and information utilities; (c) other financial institutions and industry bodies; (d) other governmental and statutory Authorities. The Borrower shall not induct a person in the capacity of directors/promoters/sponsors who is identified as wilful defaulter. In the event the person so inducted is found to be a wilful defaulter, the Borrower shall take effective steps for removal of such person;

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER	SIGNED FOR AND ON BEHALF OF LENDER
For QAIG PRIVATE LIMITED X1 Director	X2	

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i. the financial statements supplied to the Lender are true to the best of its knowledge and they represent its stand-alone and/ or consolidated financial condition and operations during the relevant financial year and there has been no Material Adverse Change since the date of the last audited financial statement shared with the Lender;

j. it shall enter into valid agreements and pay all the installments, rents, taxes, duties, payments and outgoings, etc. in respect of the premises where it conducts its business so as to keep the same free from actions against eviction or from attachment or distress and shall keep such premises insured against loss or damage by fire, floods, riot, arson, civil commotion and all such other risks as the Lender shall require and shall forthwith produce the policies of insurance to the Lender whenever required by the Lender;

k. it has paid all public demands such as income tax and all the other taxes and revenues payable to the Government of India or to the Government of any State or to any Authority including local Authorities and that at present there are no arrears of such taxes due and outstanding;

l. it shall whenever so required by the Lender allow the Lender or its agents to inspect its records, books, bank accounts, invoices, bills of lading, balance sheets, profit and loss accounts and other documents; and

m. it has disclosed all facts or information or circumstances relating to its liabilities and itself to the Lender, and the Borrower is not aware of any material facts or circumstances that have not been disclosed to the Lender and which might, if disclosed, adversely affect the decision of a person considering whether or not to provide finance to the Borrower on the terms set out herein.

7.2. Each of the above representations and warranties are true and complete as on the date of this Facility Agreement and the Borrower warrants that they shall continue to remain true on the date of disbursal/ drawdown of the Facility, each due date, and until the entire Outstanding Amount is repaid by the Borrower to the satisfaction of the Lender. The Borrower acknowledges that the Lender has entered into this Facility Agreement and will be granting the Facility to the Borrower in reliance of the (a) representations and warranties made out herein; (b) obligations to be fulfilled by the Borrower(s) under this Facility Agreement; and (c) performance of the covenants and undertakings of the Borrower(s) as set out herein.

7.3. The Borrower hereby covenants/ undertakes with the Lender that the Borrower:

a. shall not withdraw, revoke, alter, modify or amend the Authorizations taken for its business or the Facility and shall comply with Applicable Laws at all times;

b. shall not (a) wind up, liquidate or dissolve their affairs; (b) change its accounting standards or their accounting year; (c) dispose of its assets or enter into a compromise or arrangement with any of its creditors; (d) amend or modify its constitution documents; (e) change its accounting policies; (f) make any material change in their business/ activities; (f) change its capital structure (including by altering their share capital or by issuance of any further shares), management, constitution (which term includes the admission of any partner or the retirement of any partner for any reason other than the demise of that partner in the case of a partnership) or existing ownership (in case of a company or a limited liability partnership);

c. is not and no other person who is benefiting in any capacity, either directly or indirectly, in connection with or from this Facility Agreement and/or any instruments and/or payments thereunder is a Specially Designated National ("SDN") and/or otherwise sanctioned, under the sanctions promulgated by the United States (including its Office of Foreign Assets Control's), India, United Nations, European Union, the jurisdiction of the Facility office and/or any other country (collectively, the "Sanctions"). The Borrower shall ensure that its transactions do not violate any Sanctions, nor any sanctioned persons or entities are involved in its transactions. The Borrower agrees that it shall not avail the Facility or use the proceeds of the Facility in any transaction with, or for the purpose of financing the activities of, any person currently subject to any Sanctions as afore stated;

d. shall not (a) transfer funds advanced under this Facility Agreement or its assets to any group or associate company or concern; (b) enter into, or be a party to, any transaction with any Affiliate, except in the ordinary course of and pursuant to the reasonable requirements of the Borrower's business and upon fair and reasonable terms which are fully disclosed to the Lender in advance; (c) agree, authorise or otherwise consent to any settlement, resolution or compromise of any litigation, arbitration or other dispute with any person without the prior consent of the Lender if such settlement, resolution or compromise could reasonably be expected to have a Material Adverse Change; and (d) do or cause to be done any act of omission or commission that may prejudice the rights of the Lender under the Facility Documents;

e. shall promptly inform the Lender in the event that auditors for the Borrower cease acting as the auditors for any reason along with the reasons for such change;

f. shall not make any change in its shareholding, management, constitutional documents, undertake any merger, de-merger, consolidation, reorganisation, scheme of arrangement or compromise with its shareholders or creditors or effect any scheme of amalgamation or reconstruction, restructuring, change in business or operations without the prior written consent of the Lender; and

g. shall ensure that all insurances which are required to be maintained or effected by the Borrower or any other person pursuant hereto or any of the Facility Documents are in full force and effect, and no event or circumstance has occurred, nor has there been any omission to disclose a fact, which would in either case entitle any insurer to avoid or otherwise reduce its liability under any policy relating to the insurances. Further, the Borrower has complied with all its obligations in relation to insurance under the Facility Documents.

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER	SIGNED FOR AND ON BEHALF OF LENDER
For QAIG PRIVATE LIMITED X1 Director	X2	

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8. EVENTS OF DEFAULT

8.1. The occurrence of any of the following events shall constitute an event of default ("**Event of Default**"):

a. The Borrower committing any default in the payment of any amounts under this Facility Agreement to the Lender when due and payable;

b. The Borrower is in breach of any representation, warranty, covenant or undertaking made under any Facility Documents or any representation, warranty, covenant or undertaking made by the Borrower and/ or any notice, document, certificate or statement delivered by the Borrower is fabricated, false, incorrect (whether due to inadvertence of otherwise);

c. The Borrower defaults in performing any of the obligations under this Facility Agreement or breaches any of the terms or conditions of the Facility Documents or any other documents executed in favor of the Lender;

d. The default by the Borrower in any manner in relation to its Indebtedness or any agreement executed with any other bank, financial institution, creditor or other entity and which has issued any notice in relation to such default and/ or instituted any legal or other proceedings against the Borrower;

e. Cessation of business, liquidation/ dissolution, amalgamation or reconstruction, general assignment for the benefit of creditors; suspending payment to any creditors or threatening to do so; death of the Borrower in case of the Borrower being an individual, or death of the proprietor in case of a sole proprietorship;

f. Any person, other than the Lender, commencing proceedings to declare the Borrower insolvent, filing of any petition of winding up against the Borrower or if the Borrower becomes bankrupt or insolvent;

g. Any event or circumstance arises which has or, in the reasonable opinion of the Lender, may cause a Material Adverse Change; or

h. If any person who is declared as wilful defaulter by TransUnion CIBIL Limited ("CIBIL") or RBI or similar agency or Authority, is inducted into the Borrower's board or partnership or if an existing director/ partner/ trustee is classified as a wilful defaulter by CIBIL or RBI or similar agency or Authority and such person is not removed from the Borrower's board/ partnership or any other constituent.

9. CONSEQUENCES OF EVENT OF DEFAULT

9.1. In the event of occurrence of any of the foregoing Events of Default, upon prior written notice, the Lender may exercise any or all of the following rights as available to it:

a. declare all Outstanding Amounts under the Facility to become immediately due and payable and declare that the undrawn Facility shall be cancelled;

b. require the Borrower to provide any form of credit enhancement or create security over any asset of the Borrower acceptable to the Lender and the Borrower shall ensure that it takes all required actions to provide such security interest for the benefit of the Lender;

c. subject to compliance with Applicable Laws, take charge, seize, recover, receive, appoint receivers or remove, or take possession of all or any part of the assets of the Borrower and also of the books of accounts, documents and other records relating thereto and thereupon forthwith or at any time and from time to time to sell, realise, dispose of, operate and deal with in any manner including by public auction or tender or private contract and whether with or without intervention of the court all or any part of Borrower's assets in such manner and upon such terms and conditions as the Lender may think fit without being accountable for any loss or shortfall occasioned thereby;

d. recover the Outstanding Amount under the Facility by banking/ national automated clearing house (NACH) mandates/ e-NACH and any other repayment instruments;

e. report the Borrower and its directors, partners, proprietor to the RBI, credit bureau agencies (such as CIBIL) authorized by RBI, information utilities and/ or any other statutory body in this regard as defaulters, who in turn may disseminate and include such information in their reports or other publications; or

f. take any action as it may deem fit for recovery of its dues and enforcement of any of its rights under the Facility Documents or at law.

9.2. The powers and the entitlements conferred herein are cumulative and nothing herein contained shall prejudice or affect any general or special powers to which the Lender is or may be by law or otherwise entitled or shall preclude the Lender from enforcing its rights and the security under this Facility Agreement as often as the Lender deems appropriate without enforcing or having recourse in the first instance to any other security held by the Lender. The foregoing powers the Lender shall be without prejudice to the rights and remedies of the Lender by way of suit or otherwise and notwithstanding that there may be pending suit or other proceedings and the Borrower shall indemnify the Lender for all associated costs and expenses and any liability incurred.

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER	SIGNED FOR AND ON BEHALF OF LENDER
For QAIG PRIVATE LIMITED X1 Director	X2	

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10. MISCELLANEOUS

10.1. **Appointment of Agents**: The Borrower understands, accepts and authorizes the Lender to appoint, from time to time such persons or third parties, as its agents to execute and perform any/all rights, obligations and function of the Lender such as collection of KYC documents, repayment and disclose necessary information for better and more effectual enjoyment of the Facility.

10.2. **Joint and several liability**: The liability of each of the Borrower(s) and the Co-Borrower(s) under the Facility Documents shall be joint and several.

10.3. **Notices**: Any notice or other communication given pursuant to this Facility Agreement must be in writing and shall be deemed to be delivered (a) immediately, when delivered personally; (b) on the 2nd (second) Business Day after the date of dispatch, when sent by registered mail with acknowledgment due, postage prepaid/ courier; or (c) immediately, when sent by email and no 'delivery failure notification' is received by the sender. Any Party from time to time may change its address for the purpose of notices to that Party by giving a similar notice specifying a new address. The address of the Lender is Attn - Customer Service; Email ID: hello@clix.capital. The address of the Borrower shall be as set out in the Commercial Terms and/ or Facility Documents.

10.4. **Governing Law**: This Facility Agreement shall be governed and interpreted in accordance with Indian laws and the Parties shall be subject to the exclusive jurisdiction of the courts at New Delhi, India with respect to any suit, action or any other proceedings arising out of or in relation to the Facility Documents. The Borrower agrees that any legal action or proceedings arising out of this Facility Agreement, subject to the provisions of Clause 10.5 (Arbitration).

10.5. **Arbitration**: In case of any dispute arising out of or in relation to the Facility Documents, the Parties shall settle the dispute through arbitration under the Indian Arbitration and Conciliation Act, 1996 (as amended or restated from time to time). The arbitration shall be referred to a sole arbitrator appointed by the Lender. The seat of arbitration proceedings shall be New Delhi, India. All proceedings shall be in English. The award of the arbitrator shall be final and binding on the Parties and the expenses of the arbitration shall be borne in such manner as the arbitrator may determine.

10.6. **Assignment**: The Borrower shall not transfer or assign any of its rights or liabilities under the Facility Documents to any person without the prior written consent of the Lender. The Lender shall be entitled to transfer, by way of assignment, novation or securitization, all or any of its rights, obligations, duties and liabilities under the Facility Documents to any third party without being required to further intimate the Borrower in this regard.

10.7. **Appropriations and Set Off**: The Borrower agrees and confirms that the Lender may at its absolute discretion, appropriate any payments made by the Borrower under the Facility Documents, towards the dues payable by the Borrower to the Lender and/ or its group companies under other financing agreements entered into between the Borrower and the Lender and/ or its group companies, and such appropriation by the Lender shall be final and binding on the Borrower in all respects. The Lender is entitled to settle any Indebtedness whatsoever owed by the Borrower to it by adjusting, setting-off any deposit(s) and/ or transferring monies lying to the balance of any account(s) held by the Borrower with the Lender and/ or its group companies, to combine or consolidate at any time all or any of the accounts and liabilities of the Borrower including accounts not related to the Facility, and to sell any of the Borrower' assets or properties held by the Lender and/or its group companies.

10.8. **Partial Invalidity**: If any part of this Facility Agreement is declared unenforceable or invalid, the remainder will continue to be valid and enforceable against the Borrower.

10.9. **Right to Disclose**: The Borrower shall keep and maintain confidentiality of all terms and conditions of the Facility Documents. The Borrower expressly agrees and consents that the Lender may share with (a) RBI; (b) credit information companies/ bureaus and information utilities; (c) other financial institutions and industry bodies; (d) Affiliates and group companies of the Lender; and (e) service providers, potential assignees, and other third-parties, all or any information of the Borrower and the Facility and the Facility Documents including but not limited to (a) the personal and financial information of the Borrower and its business; (b) the performance of the Facility; and (c) occurrence of an Event of Default, if any, as the Lender may deem appropriate and necessary to disclose and furnish. The Borrower agrees that the RBI and/ or any credit bureau authorised in this behalf by the RBI, information utilities, may publicly publish such data, subject to Applicable Laws.

10.10. **Waiver**: The Parties agree that any delay or omission by the Lender in exercising any of its rights, powers or remedies under this Facility Agreement and other documents pursuant hereto shall not impair the right, power or remedy or be construed as its waiver or acquiescence by the Lender.

10.11. **Indemnity**: The Borrower shall indemnify the Lender (including its agents, officials, employees etc.) against all costs, charges, expenses, losses and / or damages incurred or suffered by the Lender by reason of any false or misleading information given by the Borrower to the Lender, or as a result of the occurrence of any Event of Default or due to breach of any representation, warranty, undertaking and/or covenant by the Borrower under this Facility Agreement / the Facility or for the enforcement of any of the security.

SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER	SIGNED FOR AND ON BEHALF OF LENDER
For QAIG PRIVATE LIMITED Director		CLIX CAPITAL SERVICES PRIVATE LIMITED

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10.12. **Taxes and Charges**: The Borrower shall be liable to pay all applicable Taxes, fees, stamp duties, processing fees, upfront fees, costs, prepayment fees, enforcement expenses, assignment cost, legal expenses and other charges, as may be applicable from time to time on the Facility, this Facility Agreement or any other Facility Document, which may be revised by the Lender from time to time. All payments to be made by the Borrower to the Lender under this Facility Agreement have been determined on the basis that they shall be free and clear of any Tax deduction. The Borrower shall reimburse the Lender for any Taxes and charges as may be incurred by the Lender from time to time for paying the same on behalf of the Borrower, if any.

10.13. **Amendment**: Unless otherwise provided in this Facility Agreement, no variation of this Facility Agreement or amendment to this Facility Agreement shall be effective unless reduced to writing and signed by or on behalf of a duly authorised representative of each of the Parties to this Facility Agreement.

10.14. **Grievance Redressal Mechanism:** In the event of any grievance, dispute, or complaint arising out of or in connection with this Loan Agreement, the Borrower shall have the right to raise such grievance with the Lender through the grievance redressal mechanism provided herein.

a. **Submission of Grievance:** The Borrower shall submit a written complaint to the Lender's designated Grievance Redressal Officer (GRO), providing details of the grievance, supporting documents, and any other relevant information.

b. **Acknowledgment and Response Time:** Upon receipt of the grievance, the Lender shall acknowledge the complaint within [7] working days and provide a reference number for future correspondence. The Lender shall make every effort to resolve the grievance within [30] working days from the date of receipt of the complaint.

c. **No Suspension of Obligations:** The initiation of the grievance redressal process by the Borrower shall not suspend the Borrower's obligations under this Loan Agreement, including the repayment of any amounts due.

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SIGNED BY THE BORROWER	SIGNED BY THE CO-BORROWER	SIGNED FOR AND ON BEHALF OF LENDER
For QAIG PRIVATE LIMITED Director		